

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504066	HEREDIA VS WINGLER	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

The hearing on the motion is continued to July 21, 2026, at 8:30 a.m. No further briefing is permitted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601145	COLLINS VS UHS-CORONA, INC.	MOTION TO QUASH SERVICE OF SUMMONS

Tentative Ruling:

Plaintiff's Evidentiary Objections in Support of Opposition

**Objections to the Declaration of Benjamin A. Waters is overruled.
Objections to the Declaration of Jennifer O' Sullivan are sustained.**

UHSI's Evidentiary Objections in Support of Reply

Objections to the Declaration of Daniel Weinberg are sustained.

UHSI specially appears to challenge the service of Complaint upon it based on the lack of personal jurisdiction. Code of Civil Procedure section 418.10 authorizes a motion to quash service of summons to be filed within the time allowed for filing a response to the complaint. (Code Civ. Proc., §418.10(e)(1).) A defendant "can preserve objections to personal jurisdiction only by making a special appearance, i.e., an appearance for the sole purpose of objecting to the court's jurisdiction." (*Marriage of Obrecht* (2016) 245 Cal.App.4th 1, 8.) "A special appearance does not confer jurisdiction on the court for any purpose other than determining the question of jurisdiction over the person." (*Ibid.*)

"[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that 'minimum contacts' exist between defendant and the forum state to justify imposition of personal jurisdiction." (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710; *Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362 [plaintiff has the burden of proving by a preponderance of the evidence justifying exercise of jurisdiction].) Evidence may be in the form of declarations or a verified complaint. (See *Evangelize China Fellowship, Inc. v. Evangelize China Fellowship, Hong Kong* (1983) 146 Cal.App.3d 440, 444.)